

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, MULTAN
BENCH, MULTAN
JUDICIAL DEPARTMENT

Civil Revision No.950-D of 2025

Abdul Shakoor & others
Versus
Ghulam Muhammad (deceased) through his Legal Heirs & others

J U D G M E N T

Date of hearing: 23.04.2026.
Petitioners by: Malik Muhammad Latif Khokhar, Advocate.
Respondents by: Mr. Abdul Rehman Khan Laskani, Advocate.

MUHAMMAD SAJID MEHMOOD SETHI, J.- This consolidated judgment shall dispose of instant revision petition along with connected revision petitions i.e. **C.R. Nos.1310-D & 1311-D of 2025** as common questions of law and facts are involved in these cases.

2. These civil revisions call in question the legality and propriety of the consolidated judgments and decrees, whereby multiple suits inter se parties concerning agricultural land were decided. The learned Civil Judge, Kabirwala *vide* consolidated judgment and decree dated 04.12.2021, dismissed the suits for declaration filed by the petitioners, whereas the suit for possession instituted by the respondents/legal heirs of original allottee Niaz Muhammad was decreed. The said findings were affirmed in appeal by the learned Additional District Judge, Kabirwala *vide* consolidated appellate judgment and decree dated 28.06.2025, whereby all the appeals filed by the present petitioners were dismissed and the judgment and decree of the learned Trial Court were upheld in toto.

3. Learned counsel for the petitioners contends that despite specific remand by this Court *vide* judgment dated 22.06.2015 directing framing of an issue regarding limitation, the learned Courts below failed to properly appreciate Issue No.16-B, and erroneously computed limitation from incorrect assumptions regarding inheritance mutation

while ignoring the actual date of its incorporation and institution of the suit for possession, which according to the petitioners was hopelessly time barred. He further submits that both the learned Courts below travelled beyond the scope of remand by adjudicating issues not required to be reopened, while simultaneously omitting to decide material issues, thereby vitiating the entire exercise. Learned counsel has also stressed that the foundational facts regarding the date of death of Niaz Muhammad remain doubtful and contradictory inasmuch as different dates have surfaced from pleadings and record, yet no proper issue was framed nor any conclusive evidence in the shape of death certificate was produced; rather, to substantiate their version, respondents Nos.1 to 8 did not get the death certificate exhibited and instead their learned counsel got exhibited the register of deaths as Ex-D1 reflecting the date of death as 21.08.1967, which, being brought on record through counsel and not proved in accordance with law, is not admissible in evidence in view of settled law laid down by the superior Courts of Pakistan, rendering the findings on inheritance and consequential title legally unsustainable. He argues that the respondents, who claimed to be legal heirs of the deceased, failed to establish their relationship through any reliable documentary evidence, and the suit for possession was decreed in their favour merely on oral assertions, which is impermissible in law, particularly in matters involving valuable immovable property. Lastly, he contends that the Appellate Court failed to discharge its duty as a Court of reappraisal, affirmed the findings of the trial Court mechanically without independent reasoning, and ignored the mandate of remand as well as settled law that concurrent findings can be interfered with where material evidence is misread or essential evidence is excluded from consideration. In support, he has referred to Abdul Hakeem v. Habibullah and 11 others (1997 SCMR 1139), Mst. Hameeda Begum and others v. Mst. Irshad Begum and others (2007 SCMR 996), Manzoor Hussain (deceased) through L.Rs. v. Misri Khan (PLD 2020 Supreme Court 749) and Mst. Akhtar Sultana v. Major Retd. Muzaaffar

Khan Malik through his legal heirs and others (PLD 2021 Supreme Court 715).

4. Conversely, learned counsel for respondents Nos.1 to 8 argues that the entire chain of transactions originated from an unlawful act of Zafaryab Khan, who, after the death of Niaz Muhammad on 24.08.1967, misused the alleged general power of attorney to mutate the land in favour of his father on 23.09.1967 and subsequently created further transfers, all of which were lawfully declared void by the Member Board of Revenue vide order dated 17.10.1978. He further contends that the petitioners' claim based on agreement to sell dated 27.02.1967 was never proved in accordance with law as execution, payment of consideration and supporting witnesses were not established, rendering the suit not only unproved but also hopelessly time-barred. He maintains that a general attorney cannot validly transfer property in favour of close relatives without specific authority from the principal, hence all subsequent mutations and sales were void and incapable of conferring any lawful title or protection as *bona fide* purchasers. Lastly, he submits that both the learned Courts below, on proper appreciation of evidence, recorded concurrent findings of fact which suffer from no misreading or illegality and therefore do not warrant interference in revisional jurisdiction. In support, he has relied upon Ali Muhammad v. Muhammad Hayat and others (1982 SCMR 816), Muhammad Siddique (deceased) through LRs and others v. Mst. Noor Bibi (deceased) through LRs. and others (2020 SCMR 483), Muhammad (deceased) and another v. Mst. Bikhi (deceased) and 3 others (2018 YLR 2295), Rab Nawaz (deceased) through Legal Heirs and others v. Mst. Samra Andleeb (2025 MLD 286) and Akhtar Gul (Deceased) through Legal Heirs v. Muhammad Ashiq and 7 others (2025 CLC 670).

5. Arguments heard. Available record perused.

6. The record reveals that one Niaz Muhammad son of Nathu, an Indian immigrant, was allotted agricultural land in Chak No. 79/10-R, Tehsil and District Khanewal, against Refugee Claim No. 1661; however, to the extent of 277 PIUs, his claim remained unsatisfied. In

this backdrop, he executed a General Power of Attorney in favour of Zafaryab Khan on 27.02.1967 and, on the same day, entered into an agreement to sell the said 277 PIUs in favour of Rana Nasir Ali Khan, son of the said attorney. Subsequently, land measuring 95 Kanals and 01 Marla situated in Mouza Tarholi (Traili), Tehsil Kabirwala, District Khanewal (hereinafter referred to as the “suit property”) was allotted in the name of Niaz Muhammad on 31.08.1967. However, prior thereto or shortly thereafter, the principal allegedly passed away. Notwithstanding the alleged death of the principal, Mutation No. 85 dated 23.09.1967 was attested whereby the attorney got the suit property mutated in favour of his father, Abdul Raheem. Upon the death of Abdul Raheem, the property devolved upon his legal heirs through Mutation No. 144 dated 28.06.1969, and thereafter the widow and daughters relinquished their shares in favour of Zafaryab Khan vide Mutation No. 147 dated 18.07.1969, resulting in his being recorded as owner of the entire suit property. The said Zafaryab Khan subsequently transferred the land to the present petitioners through various mutations. Meanwhile, respondents Nos.1 to 8, claiming themselves to be legal heirs of Niaz Muhammad, challenged Mutation No. 85 dated 23.09.1967 on the ground that Niaz Muhammad had died on 08.01.1967, rendering the attorney incompetent to deal with the property. Their challenge remained unsuccessful before the revenue hierarchy up to the level of the learned Additional Commissioner; however, the Member (Revenue), Board of Revenue, Punjab, vide order dated 17.10.1978, accepted their revision petition and set aside the mutation in question. Consequent upon the said order, multiple civil proceedings ensued, including suits for declaration by the present petitioners, a suit for specific performance based on the agreement to sell dated 27.02.1967, and a suit for possession instituted by respondents Nos.1 to 8.

7. It is the case of the petitioners that the consideration was duly paid, thereby creating a binding contractual obligation for the transfer of land upon its allotment. In contrast, the respondents, being the legal heirs of the original allottee, have challenged not only the execution

and authenticity of the alleged agreement but also the legality and authority of the subsequent transactions purportedly carried out through a general power of attorney, especially in view of the death of Niaz Muhammad in August 1967.

8. The petitioners, seeking specific performance, remained indolent for an inordinate period of nearly twelve years after the alleged accrual of the cause of action, and it was only in 1979 that they set the machinery of law in motion. In the interregnum, the property had already changed hands through multiple transfers and mutation entries. These transactions were subsequently brought under challenge before the revenue authorities, ultimately culminating in a determination by the Board of Revenue whereby certain transactions were declared void and illegal.

9. The learned Trial Court framed a comprehensive set of consolidated issues encompassing limitation, validity of the agreement, payment of consideration, locus standi, estoppel, bona fide purchase, legality of mutation entries, and entitlement to relief. Upon a thorough appraisal of both oral and documentary evidence, the Trial Court concluded that the alleged agreement to sell had not been proved in accordance with law. The Court highlighted material contradictions in the petitioners' stance, the absence of reliable evidence regarding execution of the agreement and payment of consideration, non-production of the scribe, and lack of credible corroboration from the marginal witnesses. It was further observed that the alleged vendee was a minor at the relevant time, thereby rendering the contract legally suspect and unenforceable in the absence of lawful representation.

10. The learned Trial Court also took into account the conduct of the petitioners, particularly their prolonged inaction despite alleged knowledge of the transactions undertaken by close family members, including the father of the principal petitioner. The Court drew an adverse inference that the litigation was not pursued with due diligence and appeared to stem from collusive arrangements within the family structure, devised with an intent to defeat the lawful rights of the heirs.

11. On the question of limitation, the learned Courts below concurrently held that the suit for specific performance was hopelessly time-barred. The alleged agreement having been executed in 1967, whereas the suit was instituted in 1979, it was rightly concluded that the statutory period prescribed under the Limitation Act had long since expired. The view that limitation began to run from the date when the obligation for specific performance became enforceable upon allotment and confirmation is in consonance with settled principles of law. The petitioners' prolonged inaction was found to be neither explained nor justified, and was held to be fatal to their claim.

12. With regard to the authority of Zafaryab Khan as alleged general attorney, both Courts below have concurrently held that even if the existence of such agency is assumed, it stood automatically terminated upon the death of the principal, Niaz Muhammad. Consequently, any act purportedly performed thereafter was without lawful authority and void ab initio. Reliance is placed upon Ghulam Mashih Albert Gill through Special Attorney v. Province of Punjab through District Officer Revenue/Collector, Sahiwal and others (2011 CLC 848), Khursheed Begum and others v. Fateh Muhammad Khan Bajarani and others (2021 YLR 578), Mushtaq Ahmad and others v. Allah Ditta and others (2025 MLD 1012 Lahore). The subsequent mutations and further transfers founded upon such extinguished authority were, therefore, non est in the eye of law and incapable of conferring any valid title. Even otherwise, assuming arguendo the subsistence of agency at the relevant time, it is a well-settled principle of law that an agent is under a fiduciary obligation and cannot lawfully deal with the property of the principal for his own benefit or in favour of his close relatives without the prior knowledge, consent, or specific authorization of the principal, and any such self-serving transaction is liable to be repudiated.

This legal position finds reinforcement from Muhammad Arshad and 2 others v. Haq Nawaz and 9 others (2019 YLR 958), wherein it has been held that an attorney has no competence to transfer the property of the principal to his kith and kin without specific

permission, and that any such transaction, being in the nature of self-dealing, casts a heavy burden upon the beneficiary to establish lawful authority, consideration, and validity of the transaction. It has further been emphasized that mere execution of documents or mutation entries does not, by itself, establish a valid transfer unless strict legal requirements are satisfied.

The legal position is further fortified by the dictum laid down by the Hon'ble Supreme Court in Allah Bakhsh deceased through L.Rs and others v. Muhammad Riaz and others (PLD 2025 Supreme Court 63), wherein it has been categorically held that a holder of a general power of attorney must obtain prior permission, approval, and consent of the principal when alienating the principal's property in favour of close relatives, and in the absence of such express authorization, such transfer is legally unsustainable. Reference can further be made to Muhammad Anwar v. Mst. Bahrawar Sultana and others (2021 CLC 1707), Muhammad Mansha and others v. Saleem Bibi (2026 MLD 320). In the present case, not only was the authority extinguished by operation of law due to the death of the principal, but even otherwise, no material exists on record to demonstrate any special permission or consent for such alienation in favour of close relations. Consequently, the transactions founded upon such defective and legally impermissible exercise of authority were rightly declared void and incapable of creating any enforceable right in favour of the petitioners.

13. The claim of subsequent purchasers asserting themselves as bona fide transferees was also concurrently rejected. The learned Courts below found that no due diligence had been exercised prior to the alleged purchases and that the chain of title was inherently defective. It was further observed that a transferee cannot derive a better title than that of his transferor, and where the root of title is void, all subsequent transactions necessarily fall to the ground. The petitioners failed to establish that they had acted in good faith or without notice of the infirmities attached to the title.

The learned Appellate Court, while affirming the findings of the Trial Court, undertook a reappraisal of the entire material on record

and concurred with the conclusions drawn therein. It reiterated that the suit for possession instituted by the respondents was within the prescribed period of limitation, having been filed well within the statutory period of twelve years. The Appellate Court further took into consideration the intervening proceedings before the revenue authorities, which had the effect of preserving and safeguarding the rights of the legal heirs, thereby fortifying the conclusions arrived at by the Trial Court.

14. The entire edifice of the petitioners' case rests upon an agreement which has not been proved in accordance with law, a claim which is hopelessly barred by limitation, and subsequent transactions originating from a void and extinguished authority. In such circumstances, no equitable or legal relief can be extended in favour of the petitioners.

15. It is true that certain issues framed by the Trial Court were not expressly decided; however, the same were neither pressed before the Appellate Court nor shown to have any decisive bearing on the outcome of the litigation. The contention that the Courts below failed to independently reassess certain issues is devoid of merit, as the Appellate Court has duly examined the record and affirmed the findings after proper consideration. Mere concurrence with the findings of the Trial Court, without reiteration of evidence in extenso, does not render the judgment legally infirm. Likewise, non-framing of an issue or omission to expressly decide a remanded point does not vitiate the proceedings where the parties were fully aware of the controversy, led evidence thereon, and no prejudice is shown to have been caused. Reliance in this regard is placed upon Muhammad and 9 others v. Hasham Ali (PLD 2003 Supreme Court 271). The omission, therefore, does not result in any prejudice or illegality warranting interference in revisional jurisdiction.

16. The objection regarding non-production of the death certificate and the mode of exhibiting Ex-D1 is of no legal consequence. The factum of death of Niaz Muhammad stands otherwise established from the surrounding circumstances and the material available on record.

Even if the mode of proof of Ex-D1 is assumed to be irregular, such a technical defect does not vitiate the concurrent findings where the fact in issue is independently established through reliable evidence. Consequently, the said contention does not affect the validity of the findings relating to inheritance and title.

17. The revisional jurisdiction of this Court being circumscribed and limited in nature, interference is warranted only where the findings recorded by the Courts below are shown to be perverse, based on misreading or non-reading of evidence, or suffer from a jurisdictional error. In the present case, the Courts below have concurrently appreciated the evidence, applied the settled principles of limitation and contract law, and arrived at conclusions which are duly supported by the record. No material irregularity, illegality, or legal infirmity has been pointed out which may justify interference with the concurrent findings of fact. Reference is made to Abdul Hakeem v. Habibullah and 11 others (1997 SCMR 1139), Nasir Ali v. Muhammad Asghar (2022 SCMR 1054) and Mst. Farzana Zia and others v. Mst. Saadia Andaleeb and others (2024 SCMR 916).

18. Learned counsel for the petitioners has failed to point out any illegality, material irregularity, misreading or non-reading of evidence, or jurisdictional error in the concurrent decisions of the learned Courts below warranting interference by this Court. The case law cited by the learned counsel for the petitioners, in the peculiar facts and circumstances of the present case, is not attracted to the controversy in hand.

19. Resultantly, these civil revisions i.e. **Civil Revision Nos.950-D, 1310-D & 1311-D of 2025** are found to be devoid of merit and are accordingly **dismissed**. No order as to costs.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge